

Meet and Confer

Code of Civil Procedure § 2031.310(b)(2) requires that a motion to compel further responses be accompanied by a meet-and-confer declaration under Code of Civil Procedure §2016.040. The declaration must state facts showing a reasonable and good faith effort *in person, by telephone, or by videoconference* to informally resolve the disputes. (Code Civ. Proc., §2016.040(a).) A good faith meet and confer attempt requires more than just an attempt to persuade the objector of the error of his or her ways, it requires counsel to talk the matter over, compare their views, consult, and deliberate. (*Clemente v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.)

Here, Plaintiff did not attach a meet-and-confer declaration to her moving papers. Plaintiff asserts only conclusory statements in her motion that she made a good faith effort to resolve the issues informally. Plaintiff did not describe any letters or phone calls to show that she identified the deficiencies to Defendant prior to filing. The court denies the motion.

Summary

Deny the motion due to the absence of a mandatory separate statement and a meet-and-confer declaration.

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CASE #	CASE NAME	HEARING NAME
CVPS2302950	REAL ADVANTAGE TITLE INSURANCE VS BARKER	MOTION TO COMPEL DEFENDANT AND CROSS-COMPLAINANT MICHAEL BARKER'S COMPLIANCE WITH RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS

Tentative Ruling:

Moving party: Plaintiffs/Cross-Defendants Real Advantage Title Insurance Company and Orange Coast Title Company of Southern California

Responding party: Defendant/Cross-Complainant Janice Baker

This action arises out of Plaintiffs Real Advantage Title Insurance Company ("RATIC") and Orange Coast Title Company of Southern California ("OCTSC") (collectively "Plaintiffs") seeking indemnity from Defendant Janice Barker, Special Administrator of the Estate of Michael Barker, Deceased ("Barker") under a 2019 Indemnity Agreement, following Plaintiffs' \$10.5 million settlement of an underlying action by BOBS LLC.

Barker has filed an operative First Amended Cross-Complaint ("FACC") asserting causes of action for breach of contract, negligence, breach of fiduciary duty, and

declaratory relief. Among the central disputed issues are the reasonableness of the settlement, the allocation of the \$10.5 million between RATIC (a covered party) and OCTSC (an uncovered party under the Indemnity Agreement), and any reinsurance recovery.

Plaintiffs contend that in response to request for production of documents, requests one, two, and three, Barker provided responses and documents but failed to label what requests the documents were responsive to. Due to this, Plaintiffs seek to compel compliance and seeks sanctions in the amount of \$18,355.

In opposition, Barker argues that this motion is really a motion to compel further responses. It argues that it is not code compliant because it was not brought within the required 45-day time period and no separate statement is provided. It asserts that even if the 45-day deadline does not apply, the motion should still be denied because the delay in seeking recourse has prejudiced Barker. It argues that sanctions are not warranted.

A reply brief was filed 7/7/26.

Analysis

The parties disagree about whether this is a motion to compel further responses or a motion to compel compliance. A motion to compel further responses requires a meet and confer attempt, a separate statement, a showing of good cause, and a 45-day deadline. (CCP § 2031.310.) A motion to compel compliance does not require any of these things. There are no filing deadlines and no meet and confer requirements in CCP § 2031.320.

CCP § 2031.280(a) requires “[a]ny documents or category of documents produced in response to a demand for inspection, copying, testing, or sampling shall be identified with the specific request number to which the documents respond.” Plaintiffs assert that documents in response to requests for production sets one, two, and three have been produced, but they have failed to comply with CCP § 2031.280(a) because the documents do not identify what requests they are responsive to. Barker contends that since documents have been provided, there is no compliance to compel. It points to the language in CCP § 2031.320. This code section provides: “[i]f a party filing a response to a demand for inspection, copying, testing, or sampling under Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280 thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party’s statement of compliance, the demanding party may move for an order compelling compliance.” (CCP § 2031.320(a).) Baker contends that they agreed to produce and have done so, which means this motion does not fall within CCP § 2031.320.

Motions to compel further responses to requests for production can be brought if upon receipt of the responses, the propounding party is not satisfied with the responses and would like further responses because the statement of compliance is incomplete; the representation of inability to comply is inadequate, evasive, or incomplete; or objections are made without merit or are too general. (CCP § 2031.310(a).) Plaintiffs

are not dissatisfied with Baker's written responses, but with the way documents were produced. The statute which authorizes a motion compelling compliance specifically reference to CCP § 2031.280, the statute Plaintiffs contend Barker has failed to comply with. (CCP § 2031.320(a).) Since Barker agreed to produce documents, it seems reasonable to infer that it was agreeing to comply with the code sections that discuss how documents are to be produced, including CCP § 2031.280(a). As such, a motion to compel compliance appears to be the proper motion to seek compliance with CCP § 2031.280. In *Kayne v. The Grande Holdings Limited* (2011) 198 Cal.App.4th 1470, 1476, the Court found that a motion to compel compliance was the proper motion to bring when a party had failed to comply with CCP § 2031.280(a). Due to this, Barker's arguments regarding the failure to provide a separate statement or bring this motion within the 45-day deadline set forth in CCP § 2031.310 fail.

Barker argues that even if the 45-day deadline is not applicable, this motion should still be denied because Plaintiffs have waived their right to seek compliance. As discussed above, CCP § 2031.320 does not contain a deadline for seeking compliance. Barker points to no authority that has read any deadline into CCP § 2031.320 or has allowed for a right to bring a motion under this section to be waived. While Barker argues that it will face unnecessary burden and expense in having to go back and comply with CCP § 2031.280(a), it is unclear why requiring Barker to comply now would cause any additional burden than it would have had Baker complied in the first place. As such, this argument lacks merit.

The parties agree that Barker has failed to comply with CCP § 2031.280(a). As such, the **motion is granted**.

Plaintiffs seek sanctions under CCP § 2031.320(b). Under this code section, the court shall impose monetary sanctions against any party who unsuccessfully makes or opposes a motion to compel compliance unless it finds that doing so would be unjust or the losing party acted with substantial justification. Barker sets forth no reasons as to why imposing sanctions would be unjust and it does not appear to have been substantially justified in opposing this motion. As such, sanctions in a reasonable amount are allowed. The amount sought by Plaintiffs is not reasonable, however. They seek \$18,355. The moving memorandum of points and authorities is only 8 pages long. This is a straightforward motion. Accordingly, the Court imposes \$2,030 (\$400 x 5 hours + \$30 in filing fees and expenses).in sanctions payable within 30 days of this order.